

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Starace	Team: Team # 1	CCRB Case #: 201017328	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/15/2010 3:57 PM	Location of Incident: § 87(2)(b) and § 87(2)(b) and inside a police van	18 Mo. SOL 6/15/2012	Precinct: 44
Date/Time CV Reported Wed, 12/22/2010 11:37 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 12/22/2010 11:37 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Greaney	20646	947762	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Castellano	16892	946835	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Greaney	Abuse: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Michael Greaney frisked § 87(2)(b)	A . Substantiated
B . POM Michael Greaney	Abuse: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Michael Greaney searched § 87(2)(b)	B . Unsubstantiated
C . POM Michael Greaney	Abuse: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Michael Greaney threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . POM Michael Greaney	Force: At § 87(2)(b) and § 87(2)(b) in the Bronx and inside a police van, PO Michael Greaney used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Michael Greaney	Force: Inside a police van, PO Michael Greaney used a chokehold against § 87(2)(b)	E . Unsubstantiated

Case Summary

On December 22, 2011, § 87(2)(b) emailed the CCRB to file a complaint on behalf of his brother, § 87(2)(b). § 87(2)(b) did not witness the incident.

On December 15, 2011, at approximately 3:57 pm, § 87(2)(b) was walking at § 87(2)(b) and § 87(2)(b) in the Bronx, when he was stopped by PO Michael Greaney of Patrol Borough Bronx for spitting in the street. During the course of the interaction, the following allegations arose:

Allegation A – Abuse of Authority: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Michael Greaney frisked § 87(2)(b) § 87(2)(g). It is therefore recommended that

Allegation A be closed, **substantiated**.

Allegation B – Abuse of Authority: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Michael Greaney searched § 87(2)(b) § 87(2)(g). It is therefore recommended that **Allegation B** be closed, **unsubstantiated**.

Allegation C – Abuse of Authority: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Michael Greaney threatened § 87(2)(b) with the use of force.

Allegation D – Force: At § 87(2)(b) and § 87(2)(b) in the Bronx and inside a police van, PO Michael Greaney used physical force against § 87(2)(b).

Allegation E – Force: Inside a police van, PO Michael Greaney used a chokehold against § 87(2)(b) § 87(2)(g).

It is therefore recommended that **Allegations C, D and E** be closed, **unsubstantiated**.

Results of Investigation

Civilian Statement

Victim: § 87(2)(b) § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male with black hair and brown eyes. He was § 87(2)(b) at the time of incident.

Interview Statement (encl. 5A-H)

Because § 87(2)(b) did not file the complaint, he gave no statements about the incident prior to his appearance at the CCRB on January 6, 2011, other than the brief statement he made at § 87(2)(b), § 87(2)(g). His CCRB statement is summarized below.

On December 15, 2010, at approximately 4:00 pm, § 87(2)(b) was visiting his mother, who was in § 87(2)(b) at § 87(2)(b) and § 87(2)(b). § 87(2)(b)'s mother requested that § 87(2)(b) purchase her something sweet, such as pound cake, and also wanted some hot tea. So § 87(2)(b) left the hospital and went to a bodega. § 87(2)(b) was wearing a black leather jacket, with a navy blue hoodie underneath and blue jeans and sneakers.

He walked on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) and entered a bodega. § 87(2)(b) had seen a marked van parked nearby, at the corner of § 87(2)(b) and § 87(2)(b) but didn't pay much attention to it. § 87(2)(b) went into two bodegas on that block. The first had a slice of pound cake, though no tea and the second had no tea as well. § 87(2)(b) spit into the street twice after he left the second bodega and walked back towards the hospital, which is located at the intersection of § 87(2)(b) and § 87(2)(b). § 87(2)(b) crossed § 87(2)(b) when the police van pulled up and parked and an

officer, identified via investigation as PO Michael Greaney of Patrol Borough Bronx got out and told § 87(2)(b) that he had been spitting on the sidewalk.

PO Greaney had been driving the van. He was a white male in uniform. He had blonde hair and light-colored eyes. He was 5'8" tall, with a medium build. He had no facial hair or glasses and appeared to be 28 years old.

Also present was an officer identified via investigation as PO Christopher Castellano, also of Patrol Borough Bronx. He had been in the passenger seat. He was either Hispanic or white. He was in uniform. He had short brown hair. He appeared to be 28 years old. He had no glasses or facial hair.

§ 87(2)(b) told the officers, "I want to see your badge numbers, I know my rights." PO Castellano positioned himself so that his badge could easily be read, though § 87(2)(b) could not recall his badge number. PO Greaney said, "I've been to school for this" but didn't hide his badge number, which § 87(2)(b) was able to read as 20646 off his badge.

PO Greaney told § 87(2)(b) that he fit the description of someone who had been committing robberies in the area. § 87(2)(b) was told to put his hands on the wall, which was the exterior of the hospital. PO Greaney asked § 87(2)(b) if he had any drugs or weapons, and § 87(2)(b) gave PO Greaney a dismissive look. PO Greaney told § 87(2)(b) that he was "arrogant." § 87(2)(b) asked PO Greaney why he was being stopped. PO Greaney told § 87(2)(b) that he had been spitting in public. PO Greaney patted § 87(2)(b)'s person as he was talking to § 87(2)(b). Additionally, when PO Greaney was talking to § 87(2)(b) PO Greaney reached into all of § 87(2)(b)'s pockets, though § 87(2)(b) was not clear if PO Greaney removed anything from his pockets at this time. The slice of pound cake, which was wrapped in plastic, was in his right jacket pocket, along with his mother's Benefit Card. § 87(2)(b) had his wallet in his back left jeans pocket, and his keys, likely in his right front jeans pocket, though he was unsure of the exact location of his keys.

Two or three people were watching this discussion, including a woman and her daughter, though § 87(2)(b) could not describe them. The woman had seen § 87(2)(b) visiting his mother in the hospital and yelled at PO Greaney, "He's visiting his mother in the hospital, his mom's in there." When PO Greaney did not release § 87(2)(b) the woman left the incident and went back inside the hospital and told § 87(2)(b)'s mother what was happening. The other people who were watching were female or male, of indeterminate race, in their 30s.

PO Greaney got out a booklet and showed § 87(2)(b) that spitting in public was a health code violation. § 87(2)(b) said, "Okay, whatever," and was being stubborn – he was explaining that he shouldn't be stopped for spitting. PO Greaney told § 87(2)(b) to calm down and relax and keep his hands against the wall, or else he would be taken to jail. § 87(2)(b) said he wasn't going to jail. § 87(2)(b) then put his hands on the wall as instructed.

PO Greaney said, "It's either the house or the hospital." § 87(2)(b) said he'd like to go to the hospital, as he'd said, to visit his mom. PO Greaney said, "No, *you're* going to the hospital," which § 87(2)(b) took to mean that PO Greaney was going to injure him, though § 87(2)(b) did not take the threat seriously, and thought it was a funny verbal sleight-of-hand. PO Greaney then reached into § 87(2)(b)'s right jacket pocket and removed § 87(2)(b)'s mother's Benefit Card, which § 87(2)(b)'s mother had given to him to use to buy the pound cake. PO Greaney then went back to the police van with the Benefit Card.

When PO Greaney went to the van, PO Castellano stood and watched § 87(2)(b) who still had his hands against the wall of § 87(2)(b). PO Greaney came back and said, "This is not you!" to which § 87(2)(b) replied that it was his mother's.

After PO Greaney told § 87(2)(b) that the identification wasn't his, § 87(2)(b) told PO Greaney that his identification was in his wallet in his back pocket. PO Greaney then reached into the back pocket and removed the wallet and looked at § 87(2)(b)'s identification. PO Greaney then returned the wallet to § 87(2)(b)'s pocket and turned him around and told him, "We're

going to take you in.” PO Greaney attempted to lower § 87(2)(b) s hands to handcuff him. § 87(2)(b) held his hands where they were and said, “I’m not going to jail.”

PO Greaney used his right hand to punch § 87(2)(b) with a closed fist. PO Greaney hit § 87(2)(b) in the face, on the left side, by the jawbone, below his cheek. § 87(2)(b) did not fall down as a result of the punch. PO Greaney was yelling, “Stop struggling!” and the woman who had gone to talk to § 87(2)(b) s mom had returned and was saying, “Calm down!” Once PO Greaney had punched § 87(2)(b), § 87(2)(b) lowered his hands and allowed himself to be handcuffed. PO Castellano assisted in handcuffing § 87(2)(b) but did not strike § 87(2)(b).

PO Greaney then put § 87(2)(b) in the van, so that he was in the second (of three) rows in the van. No civilians were in the van at this time. PO Greaney told § 87(2)(b) to get up and go all the way to the last row. § 87(2)(b) said, “No, I’m not going. I’m sitting right here.” PO Greaney got mad and got into the van and started choking § 87(2)(b) with both hands around § 87(2)(b) s neck. PO Greaney then took his left hand off § 87(2)(b) s neck and punched § 87(2)(b) s right side, below his ribs no more than 5 times, with short jabbing punches (not a full wind-up). PO Castellano wasn’t present when PO Greaney was placing § 87(2)(b) in the seat. § 87(2)(b) did not know where PO Castellano was at this time.

PO Greaney and PO Castellano then got in the van and drove. When the officers arrived at the 44th Precinct station house, § 87(2)(b) told PO Greaney, “Y’all fucked up.” PO Greaney explained to § 87(2)(b) that “things happen,” and explained to § 87(2)(b) that if he wanted to sue, he could. § 87(2)(b) was in the 44th Precinct station house for no more than 10 minutes before he was released with a summons § 87(2)(a) 160.50. § 87(2)(b) then went to the hospital and explained what happened to his mother.

§ 87(2)(b) went home, but started to feel light-headed, which he attributed to having been punched in the face by PO Greaney. § 87(2)(b) went back to the hospital to be checked out, and was seen by a doctor who looked at him briefly and told him he was fine and to go home.

Attempts to Contact Civilians

§ 87(2)(b) stated that one of the women who witnessed the incident went into the hospital and told his mother what had happened, and that his mother should have that woman’s contact information. However, on January 7, 2011, the undersigned spoke with § 87(2)(b) s mother, who acknowledged that she had likely received the information, but that she was so sick at the time that she had since lost it. She was able to provide a description of the woman as a heavy-set black female, 5’5” tall, early 50s, in the hospital to visit her daughter, who was in the emergency room.

On January 14, 2011, the CCRB spoke with the security office at § 87(2)(b) who stated that, though there was a visitor log for some portions of the hospital, the emergency room does not have a visitor log, meaning that the hospital would not have had record of the woman’s entry into the building.

§ 87(2)(g)

NYPD Statements:

Subject Officer: PO MICHAEL GREANEY

- PO Greaney was § 87(2)(b) at the time of incident. He is a § 87(2)(b) white male with brown hair and blue eyes.
- PO Greaney worked from 1:00 pm to 9:35 pm on December 15, 2010. PO Greaney was assigned to Impact Patrol. He was in uniform and was assigned to a marked van, number 5487. His partner was PO Christopher Castellano.

Memo Book Entries (encl. 7A-C)

At 4:05 pm, one male was stopped at the intersection of § 87(2)(b) and § 87(2)(b). His name was § 87(2)(b) and he was stopped for spitting in the street. He was arrested § 87(2)(a) 160.50.

At 4:10 pm, they arrived at the 44th Precinct station house.

At 4:15 pm, the male was released with summons number § 87(2)(b).

On his fly sheet, PO Greaney had also written: "Male § 87(2)(b) brought back to 44 PCT for summons. Male uncooperative on street. Male walked out of PCT on his own power w/no injuries, stated I will get paid."

Stop, Question and Frisk Report (encl. 7E-F (computerized), 7G (handwritten))

The Stop, Question and Frisk Report for the incident states that § 87(2)(b) was stopped on December 15, 2010, at 4:05 pm, at the intersection of § 87(2)(b) and § 87(2)(b) in the Bronx under suspicion of robbery. The reason for the stop was that he "fits description." An additional factor was that the "Area Has High Incidence of Reported Offense of Type Under Investigation." Hands were placed on § 87(2)(b) he was placed against a wall and he was handcuffed. § 87(2)(b) was frisked because of "furtive movements," and he was searched because of a "hard object." § 87(2)(b) was issued a summons during the incident. He was irate and said, "I know my rights, I need money." PO Greaney filled out the report.

Summons Number § 87(2)(b) (encl. 7D)

The summons indicates that at the same time and place indicated in the Stop, Question and Frisk Report, § 87(2)(b) was cited § 87(2)(a) 160.50. PO Greaney issued the summons.

Interview Statement (encl. 7H-J)

On March 4, 2011, PO Michael Greaney was interviewed at the CCRB.

On December 15, 2010, at 4:05 pm, PO Greaney was driving along § 87(2)(b) when he saw § 87(2)(b) spit on the street. PO Greaney stopped his vehicle near the corner of § 87(2)(b) and § 87(2)(b). As PO Greaney approached, he asked § 87(2)(b) to take his hands out of his coat pockets and asked for identification. § 87(2)(b) refused. PO Greaney requested § 87(2)(b) take his hands out of his pockets and provide identification three or four times. § 87(2)(b) initially refused by saying, "I'm not taking my hands out of my pockets. You have no reason to stop me," but after three or four requests, § 87(2)(b) took his hands out of his pockets.

PO Greaney told § 87(2)(b) that he was being stopped for spitting. § 87(2)(b) explained that he had a cold. Now that § 87(2)(b) had his hands out of his pockets, PO Greaney instructed him several times to place his hands against the wall of the nearby building. § 87(2)(b) complied with this request after PO Greaney made the request several times. Once § 87(2)(b) had his hands against the wall, PO Greaney frisked him. PO Greaney believed § 87(2)(b) might have had a weapon on his person, though PO Greaney did not know what type of weapon it might have been. PO Greaney did not know specifically where on his person § 87(2)(b) might have had a weapon. PO Greaney explained that he was frisking § 87(2)(b) because he previously had refused to take his hands out of his pockets, though at the time § 87(2)(b) was frisked, he had ultimately complied with the request to take his hands out of his pockets, and had his hands against the wall.

When PO Greaney was asked directly by the CCRB if he had any basis for fearing that § 87(2)(b) had a weapon, aside from § 87(2)(b)'s initial refusal to remove his hands from his pocket, PO Greaney said that there were no other factors and that § 87(2)(b) was not speaking threateningly, nor did he have any bulges on his person.

Later in the CCRB interview, PO Greaney confirmed that, as stated on the Stop, Question and Frisk Report for the incident, § 87(2)(b) fit the description of a robber. There was an open robbery pattern for numerous robberies committed by one individual between § 87(2)(b) and § 87(2)(b). The description was a black male, 5'8" – 6'0" tall, dark-skinned, wearing a leather Pelle Pelle jacket.

PO Greaney's suspicions were raised because § 87(2)(b) fit the description of a known robber and was wearing the same type of jacket. It caused PO Greaney's "awareness" to be raised, since he knew that § 87(2)(b) could possibly be a robber and therefore be more dangerous. PO Greaney feared for his safety, particularly because § 87(2)(b) was initially non-compliant to the request that he take his hands out of his pockets.

After § 87(2)(b) had his hands on the wall and kept saying that PO Greaney had no reason to stop him, and kept turning and trying to talk to PO Greaney, PO Greaney decided to handcuff § 87(2)(b) to keep him still.

§ 87(2)(b) was not compliant to being handcuffed – he refused to put his hands down. However, PO Greaney was able to get § 87(2)(b)'s hands behind his back simply by pulling his hands down and then handcuffing him. PO Greaney did not have to use any other physical force to handcuff § 87(2)(b) nor did PO Greaney at any point strike § 87(2)(b). PO Greaney did not punch § 87(2)(b) in the face.

§ 87(2)(b) said he wanted to visit his mother in the hospital, but PO Greaney never said anything about "putting" § 87(2)(b) in the hospital. PO Greaney never mentioned that he would injure § 87(2)(b) so that he would go to the hospital. PO Greaney never threatened to beat up § 87(2)(b).

PO Greaney "did not know" if he ever removed any objects from § 87(2)(b)'s person. Later in the interview, PO Greaney stated that he searched § 87(2)(b) only after § 87(2)(b) was placed in handcuffs and next to the police van. This search was conducted because § 87(2)(b) could not be placed in the police vehicle without an officer first confirming that he had no contraband on his person. PO Greaney could not remember if he removed anything from § 87(2)(b)'s pockets during this search. Prior to this search, nothing was removed from § 87(2)(b)'s pockets.

PO Greaney was shown the Stop, Question and Frisk Report for the incident and asked why the form states that § 87(2)(b) was searched, when PO Greaney had said that § 87(2)(b) had not been searched until he was searched just prior to being placed inside the police vehicle. PO Greaney explained that the search referred to the search just prior to § 87(2)(b) being placed in the police van. PO Greaney was asked what the "hard object" was that was referred to in the Stop, Question and Frisk Report. PO Greaney stated that he did not recall. PO Greaney acquired § 87(2)(b)'s mother's benefit card at the 44th Precinct station house. PO Greaney could not recall at what point in the incident he obtained § 87(2)(b)'s proper identification.

§ 87(2)(b) was not compliant when he was placed in the van. § 87(2)(b) was screaming, "I'm going to sue!" § 87(2)(b) said, "I'm not getting in the van. I don't want to get in the van." PO Greaney ordered § 87(2)(b) in the van and § 87(2)(b) complied and stepped into the van. § 87(2)(b) refused to get into the last row of the van, as PO Greaney instructed him; § 87(2)(b) wanted to sit in the middle row. § 87(2)(b) sat in the middle row and said, "No, I'm not [going to the back row]." § 87(2)(b) then stood up and PO Greaney was able to get § 87(2)(b) into the last row of the van by pushing his chest and causing him to step back into the last row. PO Greaney did not choke § 87(2)(b) while he was in the van. PO Greaney did not punch § 87(2)(b) in the stomach or ribs in the van.

At the 44th Precinct, PO Greaney did a warrant check on § 87(2)(b) which had negative results. § 87(2)(b) was then released with a summons. § 87(2)(b) said, "I'm going to get paid," as he left the location.

PO Castellano did not get involved in the interactions between PO Greaney and § 87(2)(b).

Witness Officer: PO CHRISTOPHER CASTELLANO

- PO Castellano was § 87(2)(b) at the time of incident. He is a § 87(2)(b) white male with brown hair and brown eyes.
- PO Castellano worked from 2:00 pm to 10:35 pm on December 15, 2010. PO Castellano was assigned to Impact Patrol. He was in uniform and was assigned to a marked van. His partner was PO Michael Greaney. He had no memo book entries related to the incident.

Interview Statement (encl. 6D-F)

On February 25, 2011, PO Christopher Castellano was interviewed at the CCRB. PO Castellano was unable to recall many details of the incident § 87(2)(g)

However, PO Castellano did state that § 87(2)(b) had refused to take his hands out of his pockets and that one of the officers physically removed his hands because the officers believed § 87(2)(b) had a weapon, though PO Castellano could not recall which officer did this.

When asked what weapon he thought § 87(2)(b) may have had, PO Castellano stated a “dangerous instrument.” When prompted to specify what type of weapon, PO Castellano said, “A gun or knife.” When PO Castellano was asked if he saw a bulge in § 87(2)(b)’s pocket, PO Castellano replied that “the refusal to take his hands out of his pocket was enough.”

PO Castellano did not recall if a frisk was conducted, and vacillated between denying and not recalling if a search was conducted. He denied hearing PO Greaney threaten § 87(2)(b) with force and denied that PO Greaney punched § 87(2)(b) while they were standing in the street. PO Castellano did not see PO Greaney choke or punch § 87(2)(b) inside the police van.

According to PO Castellano, the area of incident was robbery-prone, though PO Castellano did not recall if there was a radio run for a robber in the area. At the time of incident, there was a robbery pattern open, and § 87(2)(b) matched the composite given for the perpetrator, since he was wearing the same jacket, and was of the same height and had the same features as the robber at large. However, PO Castellano never articulated that this was a factor that led him to believe that § 87(2)(b) may have had a weapon.

Medical Records (encl. 8A-M)

§ 87(2)(a) PBH §18(6)

NYPD Documents

44th Precinct Command Log (encl. 9A)

The Command Log indicates that § 87(2)(b) was brought to the station house at 4:10 pm by PO Greaney and then released with a summons at 4:15 pm. According to the Command Log, § 87(2)(b) was charged § 87(2)(a) 160.50. His physical condition was “apparently normal.”

Bronx Robbery Pattern Sheet (encl. 10A-B)

The investigation requested from the 44th Precinct Detective Squad all robbery patterns that were open on December 15, 2010. The Detective Squad provided robbery pattern number § 87(2)(b) which was opened on December 3, 2010, and consists of two men wearing ski masks who

§ 87(2)(g)

§ 87(2)(g) According to Criminal Procedure Law 140.50(3) (encl. 1A), if an officer reasonably suspects that an individual possesses a weapon, an officer may then frisk that individual.

PO Greaney explained that he frisked § 87(2)(b) because § 87(2)(b) had previously refused to take his hands out of his pockets, though at the time § 87(2)(b) was frisked, his hands were out of his pockets and against a nearby wall. When questioned by the CCRB about the frisk, PO Greaney stated that he believed § 87(2)(b) might have had a weapon, but that he did not know what type of weapon it might have been, nor did he know specifically where on his person § 87(2)(b) might have had this weapon. When PO Greaney was asked directly by the CCRB if he had any basis for fearing that § 87(2)(b) had a weapon, aside from § 87(2)(b)'s initial refusal to remove his hands from his pocket, PO Greaney said that there were no other factors and that § 87(2)(b) was not speaking threateningly, nor did he have any bulges on his person.

Later in the CCRB interview, when shown the Stop, Question and Frisk Report for the incident, PO Greaney confirmed that, as stated in the report, § 87(2)(b) fit the description of a robber, for which there was an open robbery pattern. The description was a black male, 5'8" – 6'0" tall, dark-skinned, wearing a leather Pelle Pelle jacket. Because § 87(2)(b) fit the description of a known robber and was wearing the same type of jacket, PO Greaney believed that § 87(2)(b) could possibly be the robber and therefore be more dangerous, particularly because § 87(2)(b) was initially non-compliant to the request that he take his hands out of his pockets. This, PO Greaney stated, was why he frisked § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

The Stop, Question and Frisk Report also states that § 87(2)(b) was frisked due to “furtive movements.” PO Greaney did not volunteer information about furtive movements during his CCRB interview, § 87(2)(g).

Regardless, the only reason PO Greaney gave for the frisk (other than § 87(2)(b) matching the description of a robber) was that § 87(2)(b) had previously refused to remove his hands from his pockets. However, by PO Greaney's own admission, when § 87(2)(b) was frisked his hands were out of his pockets, there were no bulges in his pockets nor any specific reasons related to § 87(2)(b)'s actions or comportment to believe he had a weapon.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed, **substantiated**.

Allegation B – Abuse of Authority: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Michael Greaney searched § 87(2)(b)

§ 87(2)(b) stated that as PO Greaney frisked him, he also reached inside of his jacket and pants pockets, though § 87(2)(b) did not know for sure if PO Greaney removed the objects contained therein to look at them. Additionally, later in the interaction, prior to his being handcuffed, § 87(2)(b) stated that PO Greaney reached into his right jacket pocket and removed his mother's Benefit Card. When PO Greaney discovered that the card was not § 87(2)(b)'s, he asked § 87(2)(b) where his identification was. § 87(2)(b) told him it was in

his wallet, in his back pants pocket. PO Greaney removed the wallet and took out the identification, just prior to handcuffing § 87(2)(b).

When questioned by the CCRB, PO Greaney “did not know” if he ever removed any objects from § 87(2)(b)’s person. Later in the interview, PO Greaney stated that he searched § 87(2)(b) only after § 87(2)(b) was placed in handcuffs and next to the police van as part of a routine search of an arrestee. Prior to this search, nothing was removed from § 87(2)(b)’s pockets and § 87(2)(b) was not searched.

PO Greaney was shown the Stop, Question and Frisk Report for the incident and asked why the form states that § 87(2)(b) was searched. PO Greaney explained that the search referred to the search just prior to § 87(2)(b) being placed in the police van. PO Greaney was asked what the “hard object” was that was referred to in the Stop, Question and Frisk Report. PO Greaney stated that he did not recall. PO Greaney acquired § 87(2)(b)’s mother’s Benefit Card at the 44th Precinct station house and did not recall when he acquired § 87(2)(b)’s identification.

PO Castellano at first denied that § 87(2)(b) was searched and then claimed he could not recall if § 87(2)(b) was searched.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed, **unsubstantiated**.

Allegation C – Abuse of Authority: At § 87(2)(b) and § 87(2)(b) in the Bronx, PO Michael Greaney threatened § 87(2)(b) with the use of force.

According to § 87(2)(b) PO Greaney said to him, “It’s either the house or the hospital,” during their discussion of whether § 87(2)(b) could be arrested. § 87(2)(b) said he’d like to go to the hospital to visit his mom. PO Greaney replied, “No, *you’re* going to the hospital,” which § 87(2)(b) took to mean that PO Greaney was going to injure him.

PO Greaney and PO Castellano denied that this conversation took place.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed, **unsubstantiated**.

Allegation D – Force: At § 87(2)(b) and § 87(2)(b) in the Bronx and inside a police van, PO Michael Greaney used physical force against § 87(2)(b)
Allegation E – Force: Inside a police van, PO Michael Greaney used a chokehold against § 87(2)(b)

§ 87(2)(b) stated that PO Greaney used his right hand to punch § 87(2)(b) with a closed fist after § 87(2)(b) refused to put his hands behind his back to be handcuffed. PO Greaney hit § 87(2)(b) in the face, on the left side, by the jawbone, below his cheek. Soon thereafter, when § 87(2)(b) was under arrest and in a marked van, PO Greaney told him to get up from the second row of the van and to sit in the last row. § 87(2)(b) refused. As a result, PO Greaney got into the van and started choking § 87(2)(b) with both hands around § 87(2)(b)’s neck. PO Greaney then took his left hand off § 87(2)(b)’s neck and punched § 87(2)(b)’s right side, below his ribs no more than 5 times, with short jabbing punches (not a full wind-up).

In his statement to medical personnel at § 87(2)(b) § 87(2)(b) stated that he was hit in the left jaw, choked and hit in the right ribs while in police custody.

PO Greaney denied these allegations, though PO Greaney wrote on the fly sheet of his memo book “Male uncooperative on street. Male walked out of PCT on his own power w/no injuries, stated I will get paid.” With regard to his actions within the police van, PO Greaney

acknowledged that § 87(2)(b) had refused to sit in the last row of the van, but § 87(2)(b) then stood up and PO Greaney was able to get § 87(2)(b) into the last row of the van by pushing his chest and causing him to step back into the last row. PO Greaney did not choke § 87(2)(b) while he was in the van. PO Greaney did not punch § 87(2)(b) in the stomach or ribs in the van.

PO Castellano denied that PO Greaney punched § 87(2)(b) on the street, but PO Castellano wasn't present when PO Greaney was placing § 87(2)(b) in the seat.

The 44th Precinct Command Log notes that § 87(2)(b) was "apparently normal" upon his arrival at the station house.

The medical records indicate that § 87(2)(b) had no physical manifestation of any of his injuries.

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed, **unsubstantiated**.

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date